

#	Case Name	Tentative Ruling
101	Ahmed v. Lorenzana, 2025-01453224	MOTION TO QUASH SERVICE OF SUMMONS – DENIED AS MOOT After the filing of Defendant Erika Noelani Lorenzana’s Motion to Quash Service of the Summons and Complaint, Plaintiff filed a new proof of service indicating that Defendant was personally served with the summons and complaint on 12/20/25 by a registered process server. (ROA 31.) Filing a proof of service that complies with the applicable statutory standards creates a rebuttable presumption that service was proper. (<i>Floveyor Int’l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795; <i>American Exp. Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390.) Further, a declaration of service by a registered process server establishes a presumption that the facts stated in the declaration are true. (Evid. Code § 647; <i>Rodriguez v. Cho</i> (2015) 236 Cal.App.4th 742, 750.) Accordingly, the Court finds that Defendant’s motion, which is based on a prior attempt at service (see ROA 25), is moot. The clerk shall give notice of this ruling.
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103	Butler v Equinox, 2024-01444716	MOTION FOR SUMMARY JUDGMENT – DENIED Plaintiff Monique Butler sued Defendants Equinox and David Mounce for negligence and premises liability, based on an incident where Plaintiff slipped and fell in the Equinox spa after allegedly seeing a cockroach. Defendants move for summary judgment based on the release allegedly signed by Plaintiff. Defendants did not allege release as an affirmative defense in their answer to Plaintiff’s complaint. (ROA